THE MARINE ENVIRONMENT PROTECTION COMMITTEE, RECALLING Article 38(a) of the Convention on the International Maritime Organization concerning the functions of the Marine Environment Protection Committee conferred upon it by international conventions for the prevention and control of marine pollution, NOTING article 16 of the International Convention for the Prevention of Pollution from Ships, 1973 (hereinafter referred to as the "1973 Convention") , article VI of the Protocol - NOTING article 16 of the International Convention for the Prevention of Pollution from Ships, 1973 (hereinafter referred to as the "1973 Convention") , article VI of the Protocol of 1978 relating to the International Convention for the Prevention of Pollution from Ships, 1973 (hereinafter referred to as the "1978 Protocol") and article 4 of the Protocol of 1997 to amend the tnternational Convention for the Prevention of Pollution from Ships, 1973, as modified by the Protocol of 1978 relating thereto (hereinafter referred to as the "1997 Protocol"), which together specify the amendment procedure of the 1997 Protocot and confer upon the appropriate body of the Organization the function of considering and adopting amendments to the 1973 Convention, as modified by the 1978 and 1997 Protocols, NOTING that, by the 1997 Protocot, Annex Vt entitled Regutations for the Prevention of Air Pollution from Ships was added to the 1973 Convention (hereinafter referred to as "Annex VI"), NOTING FURTHER regulation 13 of MARPOL Annex VI which makes the Technical Code on Control of Emission of Nitrogen Oxides from Marine Diesel Engines (NO, Technical Code) mandatory under that Annex, - NOTING FURTHER regulation 13 of MARPOL Annex VI which makes the Technical Code on Control of Emission of Nitrogen Oxides from Marine Diesel Engines (NO, Technical Code) mandatory under that Annex, NOTING ALSO that both the revised Annex VI adopted by resolution MEPC.176(58) and the NO. Technical Code 2008 adopted by resolution MEPC.177(58) entered into force on 1 July 2010, HAVING CONSIDERED draft amendments to the revised Annex VI and the NO. Technical Code 2008, 1. ADOPTS, in accordance with article 16(2)(d) of the 1973 Convention, the arnendments to Annex VI and the NO. Technical Code 2008, the text of which is set out in thet annex to the present resolution; 2. DETERMINES, in accordance with article 16(2)(f)(iii) of the 1973 Convention, that the amendments shall be deemed to have been accepted on 1 February 2013, unless prior to that date, not less than one third of the Parties or Parties the combined merchant fleets of which co